

Court No. - 21

Case :- WRIT - C No. - 5917 of 2023

Petitioner :- Shabnam

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Mahtab Alam,Rohit Yadav

Counsel for Respondent :- C.S.C.,Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

The instant petition has been filed praying for quashing of the recovery citation dated 23.11.2022 issued by respondent no.3 for recovery of electricity dues in a case of alleged theft of electricity.

Sri Mukesh Kumar Singh, learned counsel for respondent Electricity Department has received instructions. The same has been placed on record by him. A perusal thereof reveals that the notice of provisional assessment dated 15.07.2022 was sent to the petitioner through registered post on 29.07.2022, and even before expiry of period of fifteen days, order of final assessment was passed on 02.08.2022, which is in teeth of Clause 6.8(b) of the Code which stipulates fifteen working days clear notice for submitting reply. Consequently, the impugned final assessment is rendered illegal, as also the consequent recovery proceedings, which are hereby quashed, leaving it open to respondent Electricity Department to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition is disposed of accordingly.

Order Date :- 21.2.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)